

COMMITTEE ON GOVERNMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2041
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 8-201, Arizona Revised Statutes, is amended to
3 read:

4 8-201. Definitions

5 In this title, unless the context otherwise requires:

6 1. "Abandoned" means the failure of the parent to provide
7 reasonable support and to maintain regular contact with the child,
8 including providing normal supervision. Abandoned includes a judicial
9 finding that a parent has made only minimal efforts to support and
10 communicate with the child. Failure to maintain a normal parental
11 relationship with the child without just cause for a period of six months
12 constitutes prima facie evidence of abandonment.

13 2. "Abuse":

14 (a) Means the infliction or allowing of physical injury, impairment
15 of bodily function or disfigurement or the infliction of or allowing
16 another person to cause serious emotional damage as evidenced by severe
17 anxiety, depression, withdrawal or untoward aggressive behavior and which
18 emotional damage is diagnosed by a medical doctor or psychologist and is
19 caused by the acts or omissions of an individual who has the care, custody
20 and control of a child, including an employee of a child welfare agency
21 where a child is placed that is licensed by and contracted with the
22 department.

23 (b) Includes:

24 (i) Inflicting or allowing sexual abuse pursuant to section
25 13-1404, sexual conduct with a minor pursuant to section 13-1405, sexual
26 assault pursuant to section 13-1406, molestation of a child pursuant to
27 section 13-1410, commercial sexual exploitation of a minor pursuant to
28 section 13-3552, sexual exploitation of a minor pursuant to section

1 13-3553, incest pursuant to section 13-3608 or child sex trafficking
2 pursuant to section 13-3212.

3 (ii) Physical injury that results from allowing a child to enter or
4 remain in any structure or vehicle in which volatile, toxic or flammable
5 chemicals are found or equipment is possessed by any person for the
6 purpose of manufacturing a dangerous drug as defined in section 13-3401.

7 (iii) Unreasonable confinement of a child.

8 3. "Adult" means a person who is eighteen years of age or older.

9 4. "Adult court" means the appropriate justice court, municipal
10 court or criminal division of the superior court that has jurisdiction to
11 hear proceedings concerning offenses committed by juveniles as provided in
12 sections 8-327 and 13-501.

13 5. "Award" or "commit" means to assign legal custody.

14 6. "Child", "youth" or "juvenile" means an individual who is under
15 eighteen years of age.

16 7. "Complaint" means a written statement of the essential facts
17 constituting a public offense that is any of the following:

18 (a) Made on an oath before a judge or commissioner of the superior
19 court or an authorized juvenile hearing officer.

20 (b) Made pursuant to section 13-3903.

21 (c) Accompanied by an affidavit of a law enforcement officer or
22 employee that swears on information and belief to the accuracy of the
23 complaint pursuant to section 13-4261.

24 8. "Criminal conduct allegation" means an allegation of conduct by
25 a parent, guardian or custodian of a child or an adult member of the
26 victim's household that, if true, would constitute any of the following:

27 (a) A violation of section 13-3623 involving child abuse.

28 (b) A felony offense that constitutes domestic violence as defined
29 in section 13-3601.

30 (c) A violation of section 13-1404 or 13-1406 involving a minor.

31 (d) A violation of section 13-1405, 13-1410 or 13-1417.

32 (e) Any other act of abuse that is classified as a felony.

33 (f) An offense that constitutes domestic violence as defined in
34 section 13-3601 and that involves a minor who is a victim of or was in
35 imminent danger during the domestic violence.

36 9. "Custodian" means a person, other than a parent or legal
37 guardian, who stands in loco parentis to the child or a person to whom
38 legal custody of the child has been given by order of the juvenile court.

39 10. "DCS report" means a communication received by the centralized
40 intake hotline that alleges child abuse or neglect and that meets the
41 criteria for a report as prescribed in section 8-455.

42 11. "Delinquency hearing" means a proceeding in the juvenile court
43 to determine whether a juvenile has committed a specific delinquent act as
44 set forth in a petition.

45 12. "Delinquent act" means an act by a juvenile that if committed
46 by an adult would be a criminal offense or a petty offense, a violation of
47 any law of this state, or of another state if the act occurred in that

1 state, or a law of the United States, or a violation of any law that can
2 only be violated by a minor and that has been designated as a delinquent
3 offense, or any ordinance of a city, county or political subdivision of
4 this state defining crime. Delinquent act does not include an offense
5 under section 13-501, subsection A or B if the offense is filed in adult
6 court. Any juvenile who is prosecuted as an adult or who is remanded for
7 prosecution as an adult shall not be adjudicated as a delinquent juvenile
8 for the same offense.

9 13. "Delinquent juvenile" means a child who is adjudicated to have
10 committed a delinquent act.

11 14. "Department" means the department of child safety.

12 15. "Dependent child":

13 (a) Means a child who is adjudicated to be:

14 (i) In need of proper and effective parental care and control and
15 who has no parent or guardian, or one who has no parent or guardian
16 willing to exercise or capable of exercising such care and control.

17 (ii) Destitute or who is not provided with the necessities of life,
18 including adequate food, clothing, shelter or medical care.

19 (iii) A child whose home is unfit by reason of abuse, neglect,
20 cruelty or depravity by a parent, a guardian or any other person having
21 custody or care of the child.

22 (iv) Under eight years of age and who is found to have committed an
23 act that would result in adjudication as a delinquent juvenile or
24 incorrigible child if committed by an older juvenile or child.

25 (v) Incompetent or not restorable to competency and who is alleged
26 to have committed a serious offense as defined in section 13-706.

27 (b) Does not include a child who in good faith is being furnished
28 Christian Science treatment by a duly accredited practitioner if none of
29 the circumstances described in subdivision (a) of this paragraph exists.

30 16. "Detention" means the temporary confinement of a juvenile who
31 requires secure care in a physically restricting facility that is
32 completely surrounded by a locked and physically secure barrier with
33 restricted ingress and egress for the protection of the juvenile or the
34 community pending court disposition or as a condition of probation.

35 17. "Director" means the director of the department.

36 18. "Health professional" has the same meaning prescribed in
37 section 32-3201.

38 19. "Incorrigible child" means a child who:

39 (a) Is adjudicated as a child who refuses to obey the reasonable
40 and proper orders or directions of a parent, guardian or custodian and who
41 is beyond the control of that person.

42 (b) Is habitually truant from school as defined in section 15-803,
43 subsection C.

44 (c) Is a runaway from the child's home or parent, guardian or
45 custodian.

1 (d) Habitually behaves in such a manner as to injure or endanger
2 the morals or health of self or others.

3 (e) Commits any act constituting an offense that can only be
4 committed by a minor and that is not designated as a delinquent act.

5 (f) Fails to obey any lawful order of a court of competent
6 jurisdiction given in a noncriminal action.

7 20. "Independent living program" includes a residential program
8 with supervision of less than twenty-four hours a day.

9 21. "Juvenile court" means the juvenile division of the superior
10 court when exercising its jurisdiction over children in any proceeding
11 relating to delinquency, dependency or incorrigibility.

12 22. "Law enforcement officer" means a peace officer, sheriff,
13 deputy sheriff, municipal police officer or constable.

14 23. "Medical director of a mental health agency":

15 (a) Means a psychiatrist, or A licensed physician experienced in
16 psychiatric matters, who is designated in writing by the governing body of
17 the MENTAL HEALTH agency as the person in charge of the medical services
18 of the MENTAL HEALTH agency, or a psychiatrist designated by the governing
19 body to act for the director.

20 (b) Includes the superintendent of the state hospital.

21 24. "Mental health agency" means any private or public facility
22 that is licensed by this state as a mental health treatment agency, a
23 psychiatric hospital, a psychiatric unit of a general hospital or a
24 residential treatment center for emotionally disturbed children and that
25 uses secure settings or mechanical restraints.

26 25. "Neglect" or "neglected" means:

27 (a) The inability or unwillingness of a parent, guardian or
28 custodian of a child to provide that child with supervision, food,
29 clothing, shelter or medical care if that inability or unwillingness
30 causes substantial risk of harm to the child's health or welfare, except
31 ~~if~~ FOR EITHER OF THE FOLLOWING:

32 (i) The inability of ~~a~~ THE parent, guardian or custodian to
33 provide services to meet the needs of a child with a disability or chronic
34 illness is solely the result of the unavailability of reasonable services.

35 (ii) THE INABILITY OF THE PARENT, GUARDIAN OR CUSTODIAN TO PROVIDE
36 THE CHILD WITH SUPERVISION, FOOD, CLOTHING, SHELTER OR MEDICAL CARE IS
37 SOLELY DUE TO A LACK OF FINANCIAL RESOURCES AVAILABLE TO THE PARENT,
38 GUARDIAN OR CUSTODIAN.

39 (b) Allowing a child to enter or remain in any structure or vehicle
40 in which volatile, toxic or flammable chemicals are found or equipment is
41 possessed by any person with the intent and for the purpose of
42 manufacturing a dangerous drug as defined in section 13-3401.

43 (c) A determination by a health professional that a newborn infant
44 was exposed prenatally to a drug or substance listed in section 13-3401
45 and that this exposure was not the result of a medical treatment
46 administered to the mother or the newborn infant by a health professional.
47 This subdivision does not expand a health professional's duty to report

1 neglect based on prenatal exposure to a drug or substance listed in
2 section 13-3401 beyond the requirements prescribed pursuant to section
3 13-3620, subsection E. The determination by the health professional shall
4 be based on one or more of the following:

5 (i) Clinical indicators in the prenatal period, including maternal
6 and newborn presentation.

7 (ii) History of substance use or abuse.

8 (iii) Medical history.

9 (iv) Results of a toxicology or other laboratory test on the mother
10 or the newborn infant.

11 (d) Diagnosis by a health professional of an infant under one year
12 of age with clinical findings consistent with fetal alcohol syndrome or
13 fetal alcohol effects.

14 (e) Deliberate exposure of a child by a parent, guardian or
15 custodian to sexual conduct as defined in section 13-3551 or to sexual
16 contact, oral sexual contact or sexual intercourse as defined in section
17 13-1401, bestiality as prescribed in section 13-1411 or explicit sexual
18 materials as defined in section 13-3507.

19 (f) Any of the following acts committed by the child's parent,
20 guardian or custodian with reckless disregard as to whether the child is
21 physically present:

22 (i) Sexual contact as defined in section 13-1401.

23 (ii) Oral sexual contact as defined in section 13-1401.

24 (iii) Sexual intercourse as defined in section 13-1401.

25 (iv) Bestiality as prescribed in section 13-1411.

26 26. "Newborn infant" means a child who is under thirty days of age.

27 27. "Petition" means a written statement of the essential facts
28 that allege delinquency, incorrigibility or dependency.

29 28. "Prevention" means the creation of conditions, opportunities
30 and experiences that encourage and develop healthy, self-sufficient
31 children and that occur before the onset of problems.

32 29. "Protective supervision" means supervision that is ordered by
33 the juvenile court of children who are found to be dependent or
34 incorrigible.

35 30. "Qualified young adult" means a former dependent child who is
36 at least eighteen years of age and not over twenty-one years of age, who
37 meets the criteria for an extended foster care program pursuant to section
38 8-521.02 and who signs a voluntary agreement to participate in the
39 program.

40 31. "Referral" means a report that is submitted to the juvenile
41 court and that alleges that a child is dependent or incorrigible or that a
42 juvenile has committed a delinquent or criminal act.

43 32. "Secure care" means confinement in a facility that is
44 completely surrounded by a locked and physically secure barrier with
45 restricted ingress and egress.

1 33. "Serious emotional injury" means an injury that is diagnosed by
2 a medical doctor or a psychologist and that ~~does~~ MEETS any one or a
3 combination of the following:

4 (a) Seriously impairs mental faculties.

5 (b) Causes serious anxiety, depression, withdrawal or social
6 dysfunction behavior to the extent that the child suffers dysfunction that
7 requires treatment.

8 (c) Is the result of sexual abuse pursuant to section 13-1404,
9 sexual conduct with a minor pursuant to section 13-1405, sexual assault
10 pursuant to section 13-1406, molestation of a child pursuant to section
11 13-1410, child sex trafficking pursuant to section 13-3212, commercial
12 sexual exploitation of a minor pursuant to section 13-3552, sexual
13 exploitation of a minor pursuant to section 13-3553 or incest pursuant to
14 section 13-3608.

15 34. "Serious physical injury" means an injury that is diagnosed by
16 a medical doctor and that ~~does~~ MEETS any one or a combination of the
17 following:

18 (a) Creates a reasonable risk of death.

19 (b) Causes serious or permanent disfigurement.

20 (c) Causes significant physical pain.

21 (d) Causes serious impairment of health.

22 (e) Causes the loss or protracted impairment of an organ or limb.

23 (f) Is the result of sexual abuse pursuant to section 13-1404,
24 sexual conduct with a minor pursuant to section 13-1405, sexual assault
25 pursuant to section 13-1406, molestation of a child pursuant to section
26 13-1410, child sex trafficking pursuant to section 13-3212, commercial
27 sexual exploitation of a minor pursuant to section 13-3552, sexual
28 exploitation of a minor pursuant to section 13-3553 or incest pursuant to
29 section 13-3608.

30 35. "Shelter care" means the temporary care of a child in any
31 public or private facility or home that is licensed by this state and that
32 offers a physically nonsecure environment that is characterized by the
33 absence of physically restricting construction or hardware and that
34 provides the child access to the surrounding community.

35 36. "Standardized hotline assessment tool" means any written tool
36 used to make a determination that the allegation of abuse or neglect that
37 is the subject of a report received pursuant to section 8-455 involves
38 conduct that warrants investigation by the department pursuant to section
39 8-456 or 8-471.

40 37. "Young adult administrative review" means an administrative
41 review of a voluntary extended foster care case plan with the qualified
42 young adult, the department's case specialist or designee, an independent
43 party who is not responsible for the case management of or the delivery of
44 services to the qualified young adult and any other individual the young
45 adult invites.

1 <<Sec. 2. Section 8-201.01, Arizona Revised Statutes, is amended to
2 read:

3 8-201.01. Prohibitions

4 A. Notwithstanding any other provision of this chapter or chapter
5 4, articles 8, 9, 10, 11, 12, 13 and 14 of this title:

6 1. A child who in good faith is being furnished Christian Science
7 treatment by a duly accredited practitioner shall not, for that reason
8 alone, be considered to be an abused, neglected or dependent child.

9 2. A child whose parent, guardian or custodian refuses to put the
10 child on a psychiatric medication or questions the use of a psychiatric
11 medication shall not be considered to be an abused, neglected or dependent
12 child for that reason alone.

13 B. A parent may not be considered as having abused, neglected or
14 abandoned or [BE] charged with abuse, neglect or abandonment of a
15 biological, foster or adoptive child solely for seeking inpatient
16 treatment or an out-of-home placement if the child's behavioral health
17 needs pose a risk to the safety and welfare of the family.

18 C. A parent may not be considered as having abused or neglected or
19 [BE] charged with abuse or neglect of a child solely for bringing into the
20 home a biological, foster or adoptive child whose behavioral health needs
21 pose a risk to the safety and welfare of the family.

22 [D. A PARENT, GUARDIAN OR CUSTODIAN MAY NOT BE CONSIDERED AS HAVING
23 ABUSED OR NEGLECTED OR BE CHARGED WITH ABUSE OR NEGLECT OF A CHILD SOLELY
24 BASED ON THE INABILITY OF THE PARENT, GUARDIAN OR CUSTODIAN TO PROVIDE THE
25 CHILD WITH SUPERVISION, FOOD, CLOTHING, SHELTER OR MEDICAL CARE IF THE
26 INABILITY IS DUE SOLELY TO A LACK OF FINANCIAL RESOURCES AVAILABLE TO THE
27 PARENT, GUARDIAN OR CUSTODIAN.]>>

28 Enroll and engross to conform
29 Amend title to conform
And, as so amended, it do pass

WALT BLACKMAN
CHAIRMAN

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